

		pleadings govern what is relevant and in the absence of any opposition, the motions to quash are GRANTED. Tricia is directed to give notice.
6	Wessel – Trust (2021-01217028)	Motion to Dismiss
7	Rhodes – Trust (2025-01527303)	Joinder (2), Motion to Appoint Interim PPF, Motion for Suspension of Co-Trustee Eugene S. Rhodes’ Motion to Appoint Interim Professional Private Fiduciary to Replace Existing Co-Trustees (ROA 12) is GRANTED set forth below. Paul M. Rhodes’ Motion for Suspension of Co-trustee Eugene S. Rhodes and Other Relief, Including Appointment of Independent Trust Company (ROA 54) is GRANTED in part as set forth below. The court makes no ruling on the various objections filed in connection with these motions (ROAs 91, 99, 108, 114, 119, 124, & 163) because the evidence objected to is not material to the court’s disposition of the motions. The court considers Eugene’s and Paul’s declarations only for the purpose of demonstrating the state of mind of the declarants, showing hostility and lack of cooperation between them. The court does not consider any of the factual evidence offered in those declarations for their truth. Eugene’s Request for Judicial Notice (ROA 71) is DENIED as the offered documents are not material to the court’s disposition of the motions. Eugene S. Rhodes (Eugene) ¹ and Paul M. Rhodes (Paul) are co-trustees of the Frank A. Rhodes, Jr. Separate Property Trust (Trust). The Trust requires two or more trustees to exercise their powers only by unanimous consent. (Exhibit A to ROA 2 at § 10.10.)

¹ Because the parties share a last name, the court refers to them by their first names. No disrespect is intended.

This proceeding was initiated in November 2025 by Eugene's petition for instructions and other relief under Probate Code section 1722 (ROA 2). In March 2026, Paul also filed a petition, seeking to remove Eugene as co-trustee (ROA 17).

The details of the creation and history of the Trust are not necessary to this order. Neither are the various allegations and accusations made by the co-trustees against each other. Suffice it to say that, at this point, there is both hostility and lack of cooperation between Paul and Eugene as co-trustees of the Trust. (Declaration of Eugene Rhodes (ROA 13) at ¶¶ 9-10 (4:19-26), & 12-21 (5:3-7:6); Declaration of Paul M. Rhodes (ROA 32) at ¶¶ 9-22 (1:26-5:10) & 25-30 (5:20-7:9) & 34-38 (7:19-8:25) & 40 (9:9-18)).

By the motions before the court this day, Eugene seeks an order removing himself and Paul as co-trustees of the Trust and appointing a private licensed professional fiduciary in their place while Paul seeks an order suspending only Eugene as co-trustee of the Trust and appointing Peninsula Bay Trust Company in Eugene's place.

The court has discretionary authority to suspend the trustees and appoint an interim trustee. (Prob. Code, §§ 15642 & 17206; *Schwartz v. Labow* (2008) 164 Cal.App.4th 417, 429-430.) A trustee may be removed "[w]here hostility or lack of cooperation among cotrustees impairs the administration of the trust." (Prob. Code, § 15642(b)(3).)

The only things the moving parties agree on are: (1) there is both a lack of cooperation and hostility between them; and (2) administration of the Trust has been impaired. Accordingly, the court issues the following order:

ORDER OF SUSPENSION AND APPOINTMENT OF INTERIM TRUSTEE

1. Effective immediately upon issuance of this order, the court suspends Eugene S. Rhodes and Paul M. Rhodes as Trustees of the Frank A. Rhodes, Jr. Separate Property Trust (Trust). Eugene S. Rhodes and Paul M. Rhodes are referred to hereafter as the "Suspended Trustees."

	2. The court appoints Stephen J. Donell as sole Interim Trustee of the Trust pending further order of this court. 3. Donell may exercise all authority granted to a trustee under the Trust, except he may not sell, transfer, or otherwise dispose of any real property assets of the Trust without prior court order or a writing signed by the Suspended Trustees and all beneficiaries of the Trust. 4. The Suspended Trustees are to turn over all property of the Trust to Donell within 14 days after today's date (September 23, 2026), including without limitation all books, records, account information, personal property, and any and all keys, passwords, and other items or information necessary to access any property or account of the Trust. 5. Donell is to take all reasonable steps to marshal, inventory, and begin managing the assets of the Trust in a prompt and diligent manner. The Suspended Trustees are directed to reasonably cooperate with Donell in the performance of his duties as Interim Trustee. 6. Donell shall not use assets of the Trust to pay his Interim Trustee fees or attorney's fees without prior court approval. 7. Donell may not join in this litigation or any other pending litigation relating to the Trust or initiate any litigation relating to the Trust without prior court approval. 8. The court sets a Review Hearing re: Bond for December 9, 2026 at 9:00 a.m. in Department CM08. Donell is to file and serve a report to the court by December 2, 2026, providing the court and all parties with information about his efforts to marshal Trust assets and the value of all property subject to bond. Petitioners and any other interested persons may file and serve, no later than December 7, 2026, a statement addressing the amount of the bond. The joinder (ROA 77) and opposition (ROA 78) filed by interested parties Trenton Rhodes, Ranee Rhodes Shackleton, and Parker Rhodes are subject to the ruling set forth above. The court will give notice.
--	---